



CHAPTER cxii.

An Act to confer powers upon the mayor aldermen and burgesses of the borough of Blackpool relative to the acquisition of lands the construction of street improvements the provision of an aerodrome and other matters and to make further provision with respect to the health local government and improvement of the borough and for other purposes.

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[3rd August 1928.]

WHEREAS it is expedient to empower the mayor aldermen and burgesses of the borough of Blackpool (in this Act called "the Corporation") to construct street improvements and to acquire lands for that and other purposes :

And whereas it is expedient to empower the Corporation to provide an aerodrome and other works and conveniences and to acquire lands for those purposes :

And whereas it is expedient to revise the tolls which the Corporation are empowered to demand and take in respect of their markets :

And whereas it is expedient to authorise the making of town planning schemes as respects land in the borough which is wholly or partly developed and to make further provision in relation to the health local government and improvement of the borough :

And whereas it is expedient that the other provisions contained in this Act be enacted :

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And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared for the purposes hereinafter mentioned and such estimates are as follows :—

The purchase of lands under the powers of this Act	£ 250,000
The construction of the works authorised by this Act	72,000
The purposes of the section of this Act whereof the marginal note is " Aero-drome undertaking "	100,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short and
collective
titles.

1.—(1) This Act may be cited as the Blackpool Improvement Act 1928.

(2) The Blackpool Improvement Acts 1853 to 1925 and this Act may be cited jointly as the Blackpool Improvement Acts 1853 to 1928.

2. This Act is divided into Parts as follows (that is to say) :—

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Division of
Act into
Parts.

- Part I.—Preliminary.
- Part II.—Lands.
- Part III.—Street improvements.
- Part IV.—Streets and buildings.
- Part V.—Town planning.
- Part VI.—Sale of coke.
- Part VII.—Finance.
- Part VIII.—Miscellaneous.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exception and modification (namely) :—

Incorpora-
tion of Acts.

- (a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act;
- (b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Interpreta-
tion.

(2) In this Act unless the subject or context otherwise requires—

- (i) "The borough" means the county borough of Blackpool;
- (ii) "The Corporation" means the mayor aldermen and burgesses of the borough of Blackpool;
- (iii) "The council" means the council of the borough;
- (iv) "The town clerk" and "the medical officer" mean respectively the town clerk and the medical officer of health of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

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- (v) "The general rate fund" and "the general rate" mean respectively the general rate fund and the general rate of the borough or until the date when the first new valuation list made under Part II of the Rating and Valuation Act 1925 comes into force in the borough the borough fund and the borough rate of the borough;
- (vi) "The tribunal" means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;
- (vii) "Infectious disease" includes any disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough;
- (viii) "Coke" includes any solid fuel of which coal or coke is a constituent;
- (ix) "Telegraphic line" has the same meaning as in the Telegraph Act 1878;
- (x) "Daily penalty" means a penalty for each day on which any offence is continued by a person after conviction;
- (xi) "Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;
- (xii) "Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock

or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation; A.D. 1928.

(xiii) "The Lands Clauses Acts" means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

(xiv) "The Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;

(xv) "The local Acts" means the Blackpool Improvement Acts 1853 to 1928 and "the Act of 1893" "the Act of 1899" "the Act of 1901" "the Act of 1905" "the Act of 1910" "the Act of 1917" "the Act of 1920" and "the Act of 1925" mean respectively the Blackpool Improvement Act 1893 the Blackpool Improvement Act 1899 the Blackpool Improvement Act 1901 the Blackpool Improvement Act 1905 the Blackpool Improvement Act 1910 the Blackpool Improvement Act 1917 the Blackpool Improvement Act 1920 and the Blackpool Improvement Act 1925;

(xvi) "The Minister" means the Minister of Health.

PART II.

LANDS.

5. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference for the following purposes (namely):— Acquisition of lands.

(1) For the purposes of Part III (Street improvements) of this Act including the improvement and development of frontages and of the lands abutting on or adjacent to any street:

(2) For the purposes of Work No. 1 (a new street in continuation of Devonshire Road) and Work No. 8 (a widening and improvement of Church

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—

Street) authorised by the Act of 1920 including the improvement and development of frontages and of the lands abutting on or adjacent to such streets:

(3) For the purposes of the section of this Act whereof the marginal note is "Aerodrome undertaking":

Provided that the Corporation shall not acquire for the purposes of Work No. 3 authorised by this Act any lands situate on the north-easterly side of the improvement line shown on the deposited plans except by agreement.

For protec-
tion of
William
Lawson.

6. For the protection of William Lawson and his successors in title the following provision shall notwithstanding anything contained in this Act or shown upon the deposited plans and unless otherwise agreed in writing between the Corporation and the said William Lawson or his successors in title apply and have effect (that is to say):—

The Corporation shall not under the powers of this Act otherwise than in accordance with the terms of two agreements made between William Lawson of the one part and the Corporation of the other part dated respectively the sixteenth day of March and the tenth day of July nineteen hundred and twenty-eight acquire any part of the lands numbered 320 to 329 inclusive on the deposited plans.

Period for
compulsory
purchase of
lands.

7. The powers of the Corporation for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the thirty-first day of October nineteen hundred and twenty-eight.

Benefits to
be set off
against
compensa-
tion.

8. In estimating the amount of compensation or purchase money to be paid by the Corporation in respect of the acquisition under this Act of any part of the lands of any person the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands arising out of the construction of any new street or of the widening or improvement of any existing street or arising through such adjoining lands becoming lands fronting on any such new or existing street shall be fairly

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(2) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Power to
develop
lands.

12.—(1) The Corporation may lay out and develop any lands acquired by them under the powers of this Act and not required for the purposes of the street improvements authorised by this Act and (with the consent of the Minister) any other lands belonging to the Corporation and not required for the purposes for which they were acquired and may erect and maintain houses shops offices warehouses and other buildings and construct sewer pave flag channel and kerb streets roads and ways on any of such lands and may sell lease exchange or otherwise dispose of any such lands houses shops offices warehouses or buildings upon and subject to such terms conditions and restrictions as they may think fit.

(2) The Corporation may also grant building leases of any such lands as aforesaid subject to such restrictions and conditions as the Corporation may see fit to impose and may grant any easements rights or privileges in under or over such lands or any part or parts thereof and may use or dispose of the building or other materials of any houses and premises on any lands acquired or appropriated by them which they may deem it necessary or desirable to pull down.

(3) The Corporation in selling or disposing of such lands may attach to the same and may convey or lease the same subject to any conditions and restrictions upon the use thereof and as to the buildings to be erected thereon and as to the use to which such buildings may be put.

estimated and shall be set off against the said compensation or purchase money.

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9. The powers of the Corporation of purchasing lands by agreement shall be deemed to extend to and to authorise the purchase by the Corporation by agreement of any lands which they may think it desirable to purchase in order to provide substituted sites or facilities for any persons whose lands may be acquired by them for the purposes of the local Acts.

Purchase of
lands for
exchange.

10. The Corporation may enter into and carry into effect agreements with the owners of or other persons interested in any land which may be acquired under the provisions of the local Acts or which may be in the neighbourhood of any of the street improvements authorised by such Acts with respect to the reinstatement of such owners or other persons and with respect to the exchange of lands for that purpose and the Corporation may pay or receive money for equality of exchange.

Power to
reinstate
owners of
property.

11.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the Corporation may retain hold and use for such time and for such purposes as they may think fit or may sell lease exchange or otherwise dispose of in such manner for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange:

Retention
and disposal
of lands.

Provided that the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

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(4) The Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any of the lands to which this section applies at a price or rent or for a consideration of a value less than the current market value of such lands but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

PART III.

STREET IMPROVEMENTS.

13. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter mentioned together with all necessary or proper works improvements junctions connections approaches embankments retaining walls sewers drains and conveniences connected therewith or incidental thereto.

Power to
make works.

The works hereinbefore referred to and authorised by this section (except Work No. 5) will be situate wholly in the borough and are—

Work No. 1 A widening of Talbot Road on the south side between Larkhill Street and Edelston Road;

Work No. 2 A widening of Coronation Street on both sides between Carter Street and Read's Road;

Work No. 3 A widening of Central Drive on the north-east side between Hounds Hill and Read's Road;

Work No. 4 A widening of Waterloo Road on the south side between the Promenade and Bath Street;

Work No. 5 A new street in the township of Carleton and in the borough (together with a bridge over the Poulton and Blackpool branch of the London Midland and Scottish Railway near the level crossing at Bispham Station) commencing by a junction with Poulton Road and terminating by a junction with Bispham Road;

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Work No. 6 A new street commencing by a junction with Bispham Road near the level crossing over the London Midland and Scottish Railway at Bispham Station and terminating by a junction with Work No. 5;

Work No. 7 A widening and extension of Delaware Road commencing at its junction with Poulton Road and terminating by a junction with Work No. 6;

Work No. 8 A new street commencing at the junction of Warbreck Hill Road and Devonshire Road and terminating by a junction with Warbreck Hill Road;

Work No. 9 A widening of Fleetwood Road on the west side and of Mossom Lane on the south side;

Work No. 10 A widening of main road on both sides;

Work No. 11 A footpath in continuation of Frederick Street to Hesketh Avenue.

Limits of deviation.

14. In the construction of the works authorised by this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and from the levels thereof as shown on the deposited sections to any extent not exceeding five feet either upwards or downwards.

Power to stop up level crossing.

15.—(1) When Work No. 5 and Work No. 6 authorised by this Act have been completed and are open for traffic the level crossing in the borough of the Bispham Road over the railway of the London Midland and Scottish Railway Company shall be closed.

(2) For the prevention of doubt be it enacted that section 68 of the Lands Clauses Consolidation Act 1845 shall apply to any lands which adjoin any part of the Bispham Road between the termination of Work No. 5 and the commencement of Work No. 6 authorised by this Act and which are not acquired by the Corporation under the powers of this Act and are shown to have been depreciated in market value owing to the closing of the said level crossing :

Provided that if in any case the compensation claimed shall exceed the sum of fifty pounds the sum

shall be settled by arbitration under and in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919.

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16. For the purposes of and subject to the provisions of section 6 of the Telegraph Act 1878 the Corporation shall in constructing the bridge included in Work No. 5 authorised by this Act provide for the telegraphic lines of the Postmaster-General a space eighteen inches deep by twelve inches wide under one of the footways of the said bridge.

For protection of Postmaster-General.

17. The following provisions are hereby repealed :—

- (1) So much of section 20 of the Act of 1920 as empowers the Corporation to make and maintain Work No. 3 (a new street commencing at Westcliffe Drive opposite to the Windmill Inn and terminating by a junction with Warbreck Hill Road);
- (2) So much of section 26 (For protection of Lancashire and Yorkshire and London and North Western Railway Companies) as relates to the said Work No. 3 and to the acquisition of an easement or right in respect thereof;
- (3) So much of section 29 (For protection of John Robert Fielding) as relates to the said Work No. 3 and to the land required for the purposes thereof; and
- (4) Section 30 (For protection of William Fielding and others).

Abandonment of Work No. 3 authorised by Act of 1920.

18. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection of the Fylde Water Board (in this section referred to as "the board") shall have effect (that is to say) :—

For protection of Fylde Water Board.

- (1) The board are hereby empowered if they deem necessary by reason of any works or improvements of the Corporation authorised by this Act to alter the situation of or re-lay any water mains valves hydrants and appliances and to provide and lay where reasonably necessary any substituted water mains in order to maintain the supply of water during the construction of such works alterations or improvements and the

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Corporation shall pay to the board the cost of such alteration and re-laying or the provision and laying of substituted mains after credit shall have been given to the Corporation for the value of the mains thrown into disuse :

- (2) The Corporation shall give the board fourteen days' notice before the commencement of any of the works under this Act :
- (3) The board shall after receipt of the said notice from the Corporation (unless otherwise agreed) serve notice upon the Corporation with a plan showing the required alteration and re-laying of water mains valves hydrants and appliances and for the laying of substituted mains and the board shall if possible within fourteen days after the service of such notice and plan commence to execute such alteration re-laying or laying and shall complete the same with all reasonable dispatch :
- (4) The board are hereby empowered if they deem necessary by reason of any works or improvements of the Corporation authorised by this Act to alter or re-lay any service pipes and remove stopcocks stopcock-boxes meters and meter-boxes from their present positions to similar positions on the new line of footpath and the Corporation shall pay to the board the cost of such alteration or relaying :
- (5) Nothing in this Act contained shall authorise the Corporation to erect or construct any buildings or works over the site of any mains pipes valves hydrants or appliances of the board :
- (6) The Corporation shall make compensation to the board for any damage done to the water mains valves hydrants service pipes stopcocks stopcock-boxes meters and meter-boxes and other appliances belonging to the board by reason or in consequence of the works and improvements of the Corporation :
- (7) The Corporation shall during the execution of Work No. 5 authorised by this Act make adequate provision for the laying by the board over the bridge (part of the said Work No. 5)

of a water main or pipe not exceeding nine inches internal diameter. Provided that if the board shall at any time hereafter desire to break up the surface of the said bridge they shall give at least fourteen days' previous notice to the Corporation before doing so (except in cases of emergency) and the Corporation shall make good the same and the board shall repay to the Corporation the reasonable cost of such making good:

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- (8) If any difference shall arise between the parties as to the meaning or intent of anything herein contained or as to anything done by either party or as to the fact of damage to any property of the board and the compensation payable by the Corporation in respect thereof the same shall be referred to and determined by an engineer to be agreed on between the Corporation and the board or failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

19. For the protection of Robert Butcher Mather his executors administrators and assigns (in this section referred to and included in the expression "the owner") the following provision shall unless otherwise agreed between the Corporation and the owner apply and have effect:—

For protection of Robert Butcher Mather.

Notwithstanding anything contained in this Act or shown on the deposited plans relating to the widening of the Central Drive the Corporation shall not otherwise than by agreement with the owner enter upon take appropriate or use any part of the properties respectively numbered 165 166 and 167 on the said plans or any greater or other part of the property numbered 164 on the said plans than so much of that property as is situate south-westward of the line marked on the said plans "Improvement line."

20. For the protection of Walter George Andrews and Leonard Crook and their successors in title the

For protection of

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Walter
George An-
drews and
Leonard
Crook.

following provision shall notwithstanding anything contained in this Act or shown upon the deposited plans and unless otherwise agreed in writing between the Corporation and the said Walter George Andrews and Leonard Crook or their successors in title apply and have effect (that is to say) :—

The Corporation shall not under the powers of this Act otherwise than in accordance with the terms of an agreement dated the sixth day of July nineteen hundred and twenty-eight and made between Walter George Andrews and Leonard Crook of the one part and the Corporation of the other part acquire any part of the lands numbered 278 and 279 on the deposited plans.

For pro-
tection
of Harry
Crossley
and George
Shaw Cross-
ley.

21. For the protection of Harry Crossley and George Shaw Crossley and their successors in title the following provision shall notwithstanding anything contained in this Act or shown upon the deposited plans and unless otherwise agreed in writing between the Corporation and the said Harry Crossley and George Shaw Crossley or their successors in title apply and have effect (that is to say) :—

The Corporation shall not under the powers of this Act otherwise than in accordance with the terms of an agreement dated the twenty-fifth day of April nineteen hundred and twenty-eight and made between Harry Crossley and George Shaw Crossley of the one part and the Corporation of the other part acquire any part of the lands numbered 259 to 261 inclusive on the deposited plans or carry out and construct Work No. 5.

For protec-
tion of John
Robert
Fielding.

22. For the protection of John Robert Fielding and his successors in title the following provision shall notwithstanding anything contained in this Act or shown upon the deposited plans and unless otherwise agreed in writing between the Corporation and the said John Robert Fielding or his successors in title apply and have effect (that is to say) :—

The Corporation shall not under the powers of this Act otherwise than in accordance with the terms of an agreement dated the twenty-fifth day of

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April nineteen hundred and twenty-eight and made between John Robert Fielding of the one part and the Corporation of the other part acquire any part of the lands numbered 262 to 264 inclusive on the deposited plans.

PART IV.

STREETS AND BUILDINGS.

23.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street (including in that expression the widening of an existing street or the widening or adaptation of a road footpath or way so as to form a new street) are submitted to the Corporation for approval the Corporation may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Corporation and the respective persons interested in such estates or lands be determined on the application of the Corporation or any such person by an arbitrator to be appointed by the Minister and the Corporation may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement may be determined by arbitration as aforesaid :

Adjustment
of bound-
aries of
estates.

Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and

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(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor. Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Corporation may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Corporation may think reasonable :

Provided that the Corporation shall not without the consent of the Minister sell or lease any such land at a price or rent or for a consideration of a value less than the current market value of such land but a purchaser or lessee shall not be concerned to inquire whether the consent of the Minister is necessary or has been obtained.

Food
storage
accommo-
dation.

24.—(1) Every dwelling-house erected after the passing of this Act shall be provided with sufficient and properly ventilated larder or other food storage accommodation and any owner who shall occupy or allow to be occupied any dwelling-house not so provided shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(2) (a) Every existing dwelling-house and every dwelling-house the erection of which was commenced before the passing of this Act shall where reasonably practicable without structural alterations or additions being necessary be provided with a sufficient and properly

ventilated larder or other food storage accommodation and any owner who shall occupy or allow to be occupied any such dwelling-house which can reasonably be so provided but which is not so provided after one month's notice from the Corporation requiring the same to be done shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. A.D. 1928.

(b) Any person aggrieved by any requirement of the Corporation under this subsection may appeal to a court of summary jurisdiction within seven days after the service of such notice provided he give twenty-four hours' written notice of such appeal and of the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs.

(c) Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this subsection.

(d) If the owner of the dwelling-house alleges that any occupier should bear or contribute to the expenses of complying with any requirements of the Corporation under this section he may apply to the county court and thereupon the county court after giving the occupier an opportunity of being heard may make such order as appears to the court just and equitable under all the circumstances of the case.

25.—(1) (a) No fence hoarding board sign or other similar structure (in this section referred to as "structure") of a greater height than four feet six inches shall be erected or brought forward on any land in any street within the borough— As to hoardings and similar structures.

(i) beyond any building line prescribed by the Corporation in respect of the land under the provisions of any Act; or

(ii) if there be no such line beyond any line which is enforceable by the Corporation for buildings under subsection (2) of section 100 of the Housing Act 1925; or

(iii) if there be neither of such lines beyond the line to which any house or building erected or brought forward on the land would have to conform under the provisions of the Public Health (Buildings in Streets) Act 1888;

so as to be within a distance of ten yards from the corner of any street or from the intersection of any streets such

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— is no palisade line from the nearest part of the footpath.

(b) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may take down or remove any structure erected in contravention of those provisions and recover the expenses incurred by them in so doing from the offender.

(2) (a) The Corporation may by notice in writing require the owner or occupier of any land upon which any structure exists at the passing of this Act which would (if erected after the passing of this Act) have contravened the provisions of subsection (1) of this section to remove or alter such structure within such time (not being less than six days) as may be specified in the notice in such a manner as to comply with those provisions and the Corporation shall on demand repay to the owner or occupier of such land the reasonable expenses incurred by him in so doing.

(b) Any person who shall neglect or refuse to comply with a notice from the Corporation given in pursuance of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may at their own expense take down or remove any structure erected or maintained in contravention of those provisions.

(3) The provisions of this section shall not be enforceable with regard to any structure existing at the passing of this Act and used for advertising purposes for a period of five years from such date and shall not apply to any wooden structure fence or hoarding of a movable or temporary character erected by a builder for his use during the construction alteration or repair of any building unless the same is not taken down or removed immediately after such construction alteration or repair is complete.

Power to
require pro-
vision of
ashbins.

26.—(1) The Corporation may by notice in writing require the owner or occupier of any premises within the time specified in the notice not being less than twenty-eight days—

(a) to provide portable receptacles for refuse of such number size and material as may be prescribed

by the notice in substitution for any ashpit or other fixed or movable receptacle for refuse which is in use at the date of the notice; and

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- (b) to remove or to fill in to the satisfaction of the Corporation any fixed ashpit for which a portable receptacle will be substituted.

(2) Where by a notice under subsection (1) of this section the Corporation require a portable receptacle for refuse to be provided in substitution for an ashpit or other receptacle for refuse which is in use at the date of the notice the Corporation shall contribute towards the reasonable cost approved by them of the receptacle such sum (not being less than one-half of the cost thereof) as they may consider just and proper according to the circumstances and the remainder of the cost shall be borne by the person to whom the notice was addressed and the Corporation may if they think fit bear the whole of the cost of providing the substituted receptacle and shall subject as hereinafter provided pay the whole of the cost of providing the receptacle and of removing or filling in the fixed ashpit where the existing receptacle is reasonably serviceable :

Provided that if the medical officer or any sanitary inspector of the Corporation shall have certified that the existing receptacle for refuse is a nuisance or injurious to health or that an existing portable receptacle is worn out and unfit for use the whole of the cost of the substituted receptacle shall be borne by the person to whom the notice was addressed.

(3) If any notice under subsection (1) of this section is not complied with or is not fully complied with the Corporation may after the expiration of the time specified in such notice provide the required receptacles and do any work thereby required to be done which has not been done by the owner or occupier and may recover from the owner or (if there be more than one owner) from the owners in such proportions as shall be determined by the Corporation the expenses incurred by them in so doing less any part of the said expenses which is to be borne by the Corporation under subsection (2) of this section or may by order declare the expenses apportioned as aforesaid to be private improvement expenses recoverable in manner provided by the Public Health Act 1875,

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—

(4) (a) Every owner or occupier by whom a receptacle for refuse has been provided in pursuance of a notice under this section shall maintain the receptacle in good order and condition and when necessary renew it.

(b) Any person who fails to comply with this subsection shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings.

Restrictions
as to use of
ashbins &c.

27.—(1) No ashbin or other refuse container provided for the deposit of refuse for removal by or on behalf of the Corporation shall be used for any purpose other than the deposit of dust cold ashes or house refuse (not being of a liquid or partly liquid character).

(2) Any person contravening the provisions of this section shall be liable to a penalty not exceeding ten shillings.

PART V.

TOWN PLANNING.

Power to
make town
planning
schemes
with refer-
ence to
developed
lands.

28. The Corporation may at any time and from time to time make a town planning scheme or town planning schemes with respect to any area in the borough notwithstanding that the land in that area or any part thereof is developed at the time of the making of such scheme and the provisions of the Town Planning Act 1925 (in this Part of this Act referred to as "the Act of 1925") shall subject to the provisions of this Part of this Act apply to the making of any such scheme and to any such scheme when made.

For pro-
tection of
Blackpool
Pleasure
Beach
Limited.

29. For the protection of Blackpool Pleasure Beach Limited (in this section referred to as "the company") the following provisions shall unless otherwise agreed in writing between the company and the Corporation have effect (that is to say):—

Notwithstanding anything contained in this Act clause 9 of the agreement dated the fifth day of November nineteen hundred and twenty-one and made between the company of the one part and the Corporation of the other part shall be and remain in full force and virtue so long as the premises of the company are used for amusement park purposes and shall not be deemed to be cancelled varied or modified in any way by any of the provisions of this Act.

30. The purposes for which land may be purchased under a town planning scheme made pursuant to this Part of this Act shall include—

- (a) the purpose of improving and developing front-ages to and developing lands abutting on or adjacent to any new street or any widening of an existing street; and
- (b) the purpose of securing the development or re-development of land in accordance with any provisions of the scheme where it appears to the Corporation that there would be difficulty in securing such development or re-development in the manner provided by those provisions by reason of the land concerned being used in a manner at variance therewith or being held in parcels or plots of inconvenient size shape or arrangement.

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—
Purposes for which land may be purchased for town planning schemes under this Part of Act.

31.—(1) Section 92 of the Lands Clauses Consolidation Act 1845 shall not be incorporated in any order made under section 8 of the Act of 1925 authorising the Corporation to purchase lands compulsorily for the purposes of any town planning scheme made pursuant to this Part of this Act but if the owner of or any person interested in any house or other building or manufactory of which the Corporation have served upon him notice to treat in respect of a specified portion only shall within twenty-one days after the service of such notice by notice in writing to the Corporation allege that such specified portion cannot be severed from the remainder of the property without material detriment thereto the arbitrator to whom any question of disputed compensation is referred under any such order (in this section referred to as “the arbitrator”) shall in addition to the other questions required to be determined by him determine whether the said specified portion of the property can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion for which the Corporation have compulsory powers of purchase) can be so severed.

As to properties of which parts only are required for town planning schemes.

(2) If the arbitrator determines that the portion of the property specified in the notice to treat or any such other portion as aforesaid can be severed from the

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A.D. 1928. — remainder without material detriment thereto such owner or other person as aforesaid may be required to sell and convey to the Corporation the portion so determined to be severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner or other person by severance or otherwise as shall be awarded by the arbitrator.

(3) If the arbitrator determines that the portion of the property specified in the notice to treat can notwithstanding the allegation of such owner or other person as aforesaid be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by such owner or other person incident to the determination of any matters under this section shall be borne and paid by such owner or other person.

(4) If the arbitrator determines that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to such owner or other person as aforesaid all costs charges and expenses reasonably and properly incurred by him in consequence of such notice.

(5) If the arbitrator determines that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to such owner or other person as aforesaid all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

(6) The provisions of this section shall be stated in every notice given under any such order as aforesaid to sell and convey any premises.

Restriction
on rights of

32. The provisions of paragraph 2 of Part II of the Third Schedule to the Act of 1925 shall not apply in

relation to any scheme made under this Part of this Act except in so far as they relate to any land which has been acquired by any company for the purposes of a railway dock or canal but the Corporation shall not be entitled to purchase compulsorily any land which is the property of any local authority or has been acquired by any company body or person for the purposes of a water or other public undertaking without the consent of such local authority company body or person but such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister.

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—
purchase in
certain
cases.

33.—(1) No provisions in any such town planning scheme as aforesaid prescribing the space about buildings or limiting the number of buildings to be erected or prescribing the height or character of buildings within the meaning of subsection (2) of section 11 of the Act of 1925 shall operate so as—

Limitation
on require-
ments under
scheme.

- (a) to require the demolition removal or alteration of any building existing at the date of the passing of the resolution of the council to prepare or adopt the scheme or of which the erection was commenced before that date; or
- (b) to affect the user of any building for any purpose for which the same was used at the said date unless the person entitled to the user of the building shall after that date (i) commence to use such building for any purpose other than that purpose or (ii) voluntarily cease for a continuous period of six months or upwards to use such building for any purpose;

unless and until the scheme is brought into operation for that purpose by an order of the Corporation approved by the Minister and where an order is so made the provisions of subsection (2) of section 11 of the Act of 1925 shall not operate so as to preclude a claim for compensation under that Act on account of the demolition removal or alteration of the building or the affecting of the purposes for which the building may be used.

(2) An order under this section shall specify the period within which any building to which the same relates is to be demolished removed or altered or any purpose for which any such building is used is to be discontinued or changed.

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(3) Before applying to the Minister for approval of an order under this section the Corporation shall serve a copy thereof on the owner or owners of all land or buildings to which the order relates and shall consider any representations which such owner or owners may make to them within such period (not being less than one month) as may be specified for that purpose in the order and may make such modifications in the order as they think necessary in consequence of any such representations.

(4) Upon the submission of the order (with or without modification) to the Minister the Corporation shall serve on the owner a copy of the order as so submitted together with a notice that objections may be made to the Minister within a period of one month from the date of service of the copy of the order and notice.

Registration
of owner-
ship of land
and service
of notices.

34. Any person being or claiming to be an owner of land within any area to which a scheme proposed to be made under this Part of this Act relates may register his name and address with the Corporation and any person who has so registered his name and address in relation to any land within any such area shall be entitled to be served at his last registered address with a copy of any notices required by any regulations made by the Minister under the Act of 1925 or any Act repealed thereby to be given by the Corporation in connection with the preparation of the said scheme and notwithstanding anything in the said regulations it shall not be incumbent on the Corporation to serve a copy of any of such notices on any person who has not so registered his name and address except that in the case of a railway company a copy of such notices shall be sent to the secretary at the principal office of such company :

Provided that in any notice advertised by the Corporation pursuant to any such Act or regulations as aforesaid of their intention to prepare or adopt any such scheme as aforesaid they shall give notice of the effect of the provisions of this section.

Definition of
" owner "
for certain
purposes.

35. For the purposes of the sections of this Act of which the marginal notes are respectively " Limitation on requirements under scheme " and " Registration of ownership of land and service of notices " the word " owner " has the same meaning as in the Lands Clauses Acts.

PART VI.

A.D. 1928.

SALE OF COKE.

36.—(1) Where any coke sold or represented to be sold as a load by weight and exceeding two hundredweights in quantity is delivered by means of any vehicle to a purchaser the seller of such coke shall deliver or cause to be delivered or to be sent by post or otherwise to the purchaser or to his servant before such load is discharged a ticket or note as nearly as may be according to the form in the Third Schedule to the Weights and Measures Act 1889 or according to a form to the like effect.

Weight
ticket or
note on
delivery of
coke over
two hun-
dredweights.

(2) If default is made in complying with the requirements of this section with respect to the delivery or sending of a ticket or note or if the quantity of the coke delivered or in course of delivery is less than the quantity expressed in the ticket or note the seller thereof shall be liable to a penalty not exceeding five pounds.

(3) If any person attending on any such vehicle having received any such ticket or note for delivery to the purchaser refuses or neglects to deliver it as required by this section or on being requested so to do to exhibit it to any inspector of weights and measures or other officer appointed for the purpose by the Corporation he shall be liable to a penalty not exceeding five pounds.

37.—(1) The seller or person in charge of any vehicle from which coke is sold by weight in quantities exceeding fourteen pounds shall carry on such vehicle a weighing instrument or suitable measure of a type approved by the Corporation stamped by an inspector of weights and measures.

Weighing
instrument
or measure
to be carried
on vehicle.

(2) Any person who shall fail to comply with the provisions of this section shall be liable to a penalty not exceeding five pounds.

38.—(1) Every person who shall sell offer or expose for sale or cause to be sold offered or exposed for sale coke in a quantity exceeding fourteen pounds but not exceeding two hundredweights shall sell the same or offer or expose the same for sale in sacks with a metal label affixed to the top of every such sack indicating the correct legal weight or measure of coke therein.

Regulating
sale of coke
under two
hundred-
weights.

A.D. 1928.

(2) Every person who shall sell offer or expose for sale or cause to be sold offered or exposed for sale from any vehicle coke in quantities not exceeding two hundredweights shall have the name and address of the seller of such coke conspicuously painted upon such vehicle.

(3) Any person who shall fail to comply with the provisions of either of the two preceding subsections of this section shall be liable on the first occasion to a penalty not exceeding forty shillings and on the second or any subsequent occasion to a penalty not exceeding five pounds.

(4) If the seller or any person in charge of any vehicle from which coke is being sold or offered or exposed for sale in quantities not exceeding two hundredweights wilfully makes any false statement as to the weight of the coke in any sack or wilfully increases such weight by damping such coke or wilfully does any other act by which the purchaser of the coke shall be defrauded he shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

(5) Public notice of the provisions of this section shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice fixed outside the town hall. The production of copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this subsection have been complied with.

Power to
require
weighing or
re-weighing
of coke and
vehicles.

39.—(1) Any purchaser of coke in a quantity exceeding two hundredweights and any inspector of weights and measures or other officer appointed for the purpose by the Corporation may subject as hereinafter provided require that any coke sold as mentioned in the section of this Act of which the marginal note is "Weight ticket or note on delivery of coke over two hundredweights" or any vehicle used for the carriage of such coke be weighed or re-weighed by an instrument stamped by an inspector of weights and measures.

(2) Any purchaser of coke in a quantity exceeding fourteen pounds but not exceeding two hundredweights and any inspector of weights and measures or other

officer appointed for the purpose by the Corporation may subject as hereinafter provided require that any coke sold offered or exposed for sale as mentioned in the section of this Act of which the marginal note is "Regulating sale of coke under two hundredweights" be weighed or re-weighed or measured or re-measured by an instrument or measure stamped by an inspector of weights and measures.

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—

(3) Provided that—

(a) no seller of coke or person in charge of a vehicle in which coke is carried shall be required under this section to carry coke beyond such distance not exceeding half a mile as may be prescribed in that behalf by the Corporation;

(b) where any such coke or vehicle has at the instance of the purchaser been weighed or re-weighed or measured or re-measured in pursuance of this section and found to be of not less than the weight or measure stated in that behalf by the seller of the coke or the person in charge of the vehicle the purchaser shall be liable to the payment of all reasonable costs actually incurred of and incidental to the weighing or re-weighing or measuring or re-measuring.

(4) If any person obstructs any weighing or re-weighing or measuring or re-measuring authorised by this section he shall be liable for every such offence to a penalty not exceeding five pounds.

(5) Any inspector of weights and measures may with the consent of the Corporation prosecute before a court of summary jurisdiction any proceedings under this section or under any of the preceding sections of this Part of this Act.

PART VII.

FINANCE.

40.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table

Power to
borrow.

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A.D. 1928. the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods mentioned in the third column of the said table (namely) :—

(1)	(2)	(3)
Purpose.	Amount.	Period for repayment calculated (except where otherwise stated) from date or dates of borrowing.
	£	
(a) The purchase of lands under the powers of this Act.	250,000	Sixty years.
(b) The construction of the works authorised by this Act.	72,000	Thirty years.
(c) The purposes of the section of this Act whereof the marginal note is "Aerodrome undertaking."	100,000	Twenty years.
(d) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from passing of this Act.

(2) The Corporation may also with the consent of the Minister borrow such money as may be necessary for any of the purposes of this Act and any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister.

(3) The yearly sums required to be provided in respect of the principal moneys borrowed under the provisions of this section shall be defrayed as expenses payable out of the general rate fund.

As to section 234 of Public Health Act 1875.

41. In calculating under subsection (2) of section 234 of the Public Health Act 1875 the amount which the Corporation may borrow the amount at the time of such calculation of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the outstanding loans contracted by the Corporation under those Acts.

Application of section 79 of Public Health Act 1925.

42. The provisions of section 79 of the Public Health Act 1925 shall apply in relation to any sums set apart as a sinking fund or a redemption fund for the purpose of paying off moneys borrowed by the Corpora-

tion in the exercise of any statutory borrowing power as if all such moneys had been borrowed by the Corporation in exercise of their powers under the Public Health Act 1875. A.D. 1928.
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43.—(1) The Corporation shall form a reserve fund to be called “the sea defence reserve fund” by setting aside on the thirty-first day of March in every year the sum produced by a rate of not less than one half-penny and not more than twopence in the pound on the rateable value of the borough according to the valuation list for the time being in force and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund amounts to the maximum sum from time to time determined by the Corporation. Sea defence reserve fund.

(2) The said reserve fund shall be applicable to make good any damage and to meet any extraordinary claim or demand arising from accident to any of the works provided by the Corporation as a defence against the sea or to their parades and promenades and so that if the fund be at any time reduced it shall thereafter again be restored to the maximum sum determined by the Corporation and so from time to time as often as such reduction happens.

(3) Resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the maximum sum determined by the Corporation.

(4) Article II of the Order relating to the borough confirmed by the Local Government Board’s Provisional Orders Confirmation (No. 7) Act 1888 section 131 of the Act of 1893 and section 9 of the Blackpool (Rates) Order 1923 are hereby repealed and the reserve fund formed under those provisions shall be carried to the credit of the reserve fund to be formed under this section.

44. In order to provide for the repayment of money borrowed under the Act of 1925 for the purposes of section 30 (Transport dépôt) of that Act and the payment of interest thereon the general rate fund and the general rate and the revenue of the Corporation’s tramway undertaking shall notwithstanding anything contained in section 99 (Power to borrow) of that Act be made specially chargeable and such money shall be primarily chargeable accordingly. Transport dépôt.

A.D. 1928.

PART VIII.

MISCELLANEOUS.

Aerodrome
under-
taking.

45.—(1) Upon the acquisition by the Corporation of the lands in the townships of Hardhorn-with-Newton and Marton in the rural district of Fylde shown on the deposited plans or any part of those lands the Corporation may establish thereon an undertaking comprising an aerodrome and works and conveniences for games and sports together with all proper or convenient hangars garages repair-shops buildings refreshment-rooms offices approach-roads footpaths works and conveniences connected therewith.

(2) The Corporation may carry on equip maintain and manage the undertaking authorised by this section and may make such charges in respect thereof as they may think fit and may let the same or any part thereof for such period and upon and subject to such terms and conditions as they may think fit :

Provided that the charges to be made in respect of the aerodrome shall be subject to the approval of the Secretary of State for Air.

(3) (a) The Corporation may make byelaws with respect to the undertaking authorised by this section.

(b) The provisions of the following sections of the Public Health Act 1875 (namely) :—

Section 182 (Authentication and alteration of byelaws);

Section 183 (Power to impose penalties on breach of byelaws);

Section 184 (Confirmation of byelaws); and

Section 185 (Byelaws to be printed &c.)

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this section except that as regards the confirmation of byelaws relating to the aerodrome and inquiries in relation thereto the Secretary of State for Air shall be substituted for the Minister of Health.

(4) The aerodrome established by the Corporation under this section and any subsidiary business connected therewith shall be in the same relation to the Air Council

and the Secretary of State for Air and subject to the like control by them under the Air Navigation Act 1920 or any Act amending replacing or consolidating the same as if this Act had not been passed. A.D. 1928.
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(5) Upon the acquisition by the Corporation of the lands referred to in this section the Corporation may stop up the footpaths shown on the deposited plans as intended to be stopped up and thereupon all rights of way over and along the same shall be extinguished.

(6) The Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

(7) All money received by the Corporation on account of the revenue of the undertaking authorised by this section shall be carried to and shall form part of the general rate fund and all payments and expenses made and incurred in respect of that undertaking shall be paid out of that fund.

(8) The Corporation may (if they think fit) apply money received by them on account of the revenue of the said undertaking in the construction renewal extension and improvement thereof in the provision of working capital for such undertaking or in the formation of a reserve fund.

(9) The Corporation shall keep their accounts in respect of the said undertaking so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all receipts in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

- (a) The working and establishment expenses and cost of maintenance of the undertaking;
- (b) The interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking;

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- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to the reserve fund to be formed as hereinafter provided.

(10) The Corporation may (if they think fit) provide a reserve fund in respect of the said undertaking by setting aside such an amount as they may from time to time think reasonable and (if they invest the amount so set aside or any part thereof) investing the same in statutory securities and accumulating the same until the fund or funds so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the works forming part thereof or for any extension of the said works or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

Resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

For pro-
tection of
Lancashire
County
Council.

46.—(1) In order to prevent congestion of traffic on the Preston and Blackpool main road in the administrative county of Lancaster in consequence of vehicles proceeding from or to the undertaking authorised by the section of this Act whereof the marginal note is "Aerodrome undertaking" the Corporation shall if and when it is agreed between the Corporation and the council of the said county or failing such agreement determined by the Minister of Transport to be necessary construct and maintain such means of access to the said undertaking and provide such parking places for vehicles resorting thereto as may be agreed between the Corporation and the said council or as failing such agreement may be determined by the said Minister.

(2) Any parking places provided under this section in the said county shall be in such situations as may be agreed between the Corporation and the council of the county or as failing agreement may be determined by the said Minister. A.D. 1928.
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47.—(1) Any premises used or proposed to be used for the manufacture or sale of ice-cream or other similar commodity shall be registered by the owner or occupier thereof with the Corporation from time to time and no premises shall be used for the purposes aforesaid or any of them unless the same are registered as aforesaid. Registration of premises used for preparation of ice-cream.

(2) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) Provided that the provisions of this section shall have no application to any premises occupied as a factory or workshop of which notice is required by subsection (1) of section 127 (Notice of occupation of factory or workshop) of the Factory and Workshop Act 1901 to be given or shall in any way affect the operation of that Act.

(4) This section shall not apply to any premises used as a hotel restaurant club or boarding-house or to premises which are let in apartments.

48.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times at his own expense keep such silencer in proper repair. Silencers for internal combustion engines.

(2) The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the silencer be found in proper order but otherwise at the expense of the person aforesaid :

Provided that nothing contained in this subsection shall apply to any stationary internal combustion engine belonging to any railway company and used by them for the purposes of their railway undertaking.

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(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

Revision of
tolls.**49.** As from the passing of this Act—

- (1) The following provisions shall be substituted for Schedule (A) (Tolls to be taken in markets) to the Blackpool Improvement Act 1853 except so much of that schedule as relates to carts butter poultry eggs horses cattle pigs and general tolls (namely) :—

For every covered or uncovered shed stall bulk block trestle standing-place or station used by any person for exposing for sale any article matter or thing whatsoever according to the size and dimensions of such shed stall bulk block trestle standing-place or station namely for every superficial square foot thereof the sum of twopence per day :

Provided that—

(a) In the case of user between the hours of half-past six in the morning and half-past twelve in the afternoon only or between half-past twelve and nine in the afternoon only the toll shall not exceed two-thirds of the toll for a whole day taken with a minimum toll of one shilling and sixpence in respect of each shed stall bulk block trestle standing-place or station ;

(b) In the case of any such shed stall bulk block trestle standing-place or station which abuts or fronts upon the footway of any street the toll shall be increased by one-third :

- (2) The remaining tolls authorised by the said Schedule (A) shall be increased by fifty per centum except that a toll less than one penny shall be increased to one penny :

(3) The tolls for weighing and measuring authorised by Schedule (B) to the Blackpool Improvement Act 1853 shall be increased by one hundred per centum. A.D. 1928. —

50. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Corporation or of or by any officer of the Corporation under the provisions of Part IV (Streets and buildings) of this Act or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Corporation may in like manner appeal. As to appeal.

51.—(1) The following sections of the local Acts shall so far as they are applicable for the purpose extend and apply with the necessary modifications to and in relation to this Act and be incorporated with and form part of this Act (that is to say) :— Incorporation of sections of existing Acts.

The Act of 1893—

Section 114 (Correction of errors omissions &c.);

Section 117 (Power to take easements &c. by agreement).

The Act of 1899—

Section 60 (Audit of accounts).

The Act of 1901—

Section 26 (Owners may be required to sell parts only of certain lands and buildings);

Section 79 (Recovery of penalties &c.).

The Act of 1905—

Section 33 (Certain regulations of Public Health Act not to apply).

The Act of 1910—

Section 20 (Application of section 265 of Public Health Act 1875).

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The Act of 1917—

- Section 55 (Subsidiary works);
- Section 56 (Power to alter steps areas pipes &c.);
- Section 57 (For protection of telegraphic lines of Postmaster-General);
- Section 31 (Temporary stoppage of streets);
- Section 63 (Compensation in case of recently acquired interest);
- Section 80 (Judges not disqualified).

The Act of 1920—

- Section 15 (Extinction of private rights of way);
- Subsection (1) of section 17 (Proceeds of sale of surplus lands).

The Act of 1925—

- Section 6 (Power to enter upon property for survey and valuation);
- Section 100 (Expenses of execution of Act);
- Section 115 (Power to enter premises);
- Section 116 (Penalty on occupier refusing execution of Act);
- Section 117 (Application of Arbitration Act 1889);
- Section 120 (Saving for indictments &c.);
- Section 124 (Compensation how to be determined);
- Section 125 (Inquiries by Minister of Health);
- Section 126 (Inquiries by Minister of Transport);
- Section 127 (Powers of Act cumulative);
- Section 130 (Crown rights).

(2) Provided that for the purposes of such incorporation—

- (a) Section 26 of the Act of 1901 shall apply in respect of the premises referred to in the schedule to this Act;
- (b) Section 61 of the Act of 1917 shall apply only in respect of Part III (Street improvements) of this Act;
- (c) Section 63 of the Act of 1917 shall have effect as if the nineteenth day of November nine-

teen hundred and twenty-seven were therein A.D. 1928.
mentioned instead of the twentieth day of —
November nineteen hundred and sixteen;

- (d) Sections 115 and 116 of the Act of 1925 shall
apply to any requirement of the Corporation
under Part IV (Streets and buildings) of this Act.

52. All the costs charges and expenses preliminary Costs of
to and of and incidental to the preparing applying for Act.
obtaining and passing of this Act as taxed by the taxing
officer of the House of Lords or of the House of Commons
shall be paid by the Corporation out of the general rate
fund or out of money to be borrowed for that purpose.

A.D. 1928.

SCHEDULE.PREMISES OF WHICH PARTS ONLY ARE REQUIRED.

Area.	Numbers on Deposited Plans.
Borough of Blackpool	5 33 34 35 36 37 38 39 40 41 42 43 44 45 46 47 48 49 50 51 52 53 54 55 56 57 58 59 60 61 62 63 64 65 66 67 68 69 70 71 72 73 74 75 76 77 78 79 80 81 82 83 84 85 86 87 88 89 90 91 92 93 94 95 100 101 102 103 104 105 106 107 108 109 110 111 112 113 114 115 116 117 118 119 120 121 122 123 124 125 126 127 128 129 130 131 132 133 134 135 136 137 138 139 140 141 142 143 144 145 146 147 148 149 150 151 152 153 154 155 156 157 158 159 160 161 162 163 168 169 170 171 172 173 174 175 176 177 178 184 185 186 187 188 189 190 191 192 193 194 196 197 198 199 200 201 202 203 204 209 210 211 212 213 214 215 216 217 218 219 220 221 222 225 227 228 229 230 231 232 233 234 235 236 237 238 239 240 241 242 243 249 6 7 261 261 <i>l</i> 261 <i>m</i> 266 267 268 269 270 271 272 273 274 275.

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